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MOTION FOR ATTORNEY FEES

The Court tenders the following tentative decision in the matter Merrick Yzbick v. Studio City Universal Management LLC, et al., Los Angeles County Superior Court case number 26STCV15270, set for hearing on September 21, 2026. Vance Yzbick (Cross-Defendant) moves for an award of attorney's fees in the amount of \$37,531.25 against Studio City Universal Management LLC (Cross-Complainant). Cross-Complainant opposes the motion. The Court grants Cross-Defendant's motion in the partial amount of \$26,687.50.

A.

Legal Standard

"[A]s a general rule, attorney fees are not recoverable as costs unless they are authorized by statute or agreement." (People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc. (2007) 147 Cal.App.4th 424, 429.) "In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code, § 1717, subd. (a).) The court may determine fees pursuant to the section upon notice and motion by a party. The party prevailing on the contract is that "who recovered a greater relief in the action on the contract." (Id., § 1717, subd. (b)(1).) The court may also determine that there is no prevailing party.

The attorney bears the burden of proof as to

“reasonableness” of any fee claim. (Code Civ. Proc., § 1033.5, subd. (c)(5).)

This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) A plaintiff’s verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488.)

In determining whether the requested attorney’s fees are

“reasonable,” the Court’s “first step involves the lodestar figure—a calculation based on the number of hours reasonably expended multiplied by the lawyer’s hourly rate. The lodestar figure may then be adjusted, based on consideration of facts specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (Gorman v. Tassajara Development Corp. (2008) 178 Cal.App.4th 44, 92.) In determining whether to adjust the lodestar figure, the Court may consider the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm LLC v. Teitler (2008) 162 Cal.App.4th 770, 774)

B. Discussion

Cross-Defendant moves for an award of attorney’s fees based on his successful anti-SLAPP motion to strike pursuant to Code of Civil Procedure section 425.16. A prevailing defendant on an anti-SLAPP motion “shall be entitled to recover [their] attorney’s fees and costs.” (Code Civ. Proc., § 425.16, subd. (c)(1).) The deadline to file and serve a separate motion for fees is the same deadline as filing a notice of appeal. (Rules of Court, rule 3.1702(b).) “Under rule 8.104(a) and (f), a notice of appeal must be filed on or before 60 days after service of a document entitled ‘Notice of Entry’ of the order granting the anti-SLAPP motion by the superior court clerk or a party; otherwise, the notice of appeal must be filed on or before 180 days after the entry of the order granting the anti-SLAPP motion.” (Mallard v. Progressive Choice Insurance Co. (2010) 188 Cal.App.4th 531, 545.)

Here, the Court entered an order granting Cross-Defendant's special motion to strike on July 28, 2026. The notice of entry of order was filed on August 3. Thus, the deadline for filing a separate motion for fees is October 2, 60 days after the notice was filed. Cross-Defendant filed the present motion on August 3. Thus, the present motion is timely.

Counsel alleges an hourly rate of \$625. (Teshale Decl. ¶ 8.) This is based on their seven years of experience practicing law and four years of specialized experience representing tenants. (Id. ¶¶ 4, 6.) The Court credits this hourly rate and will consider it when determining whether Counsel's hourly estimates for work performed are reasonable.

Counsel claims to have spent 34.7 hours preparing, preserving, and prosecuting the anti-SLAPP motion, 0.6 hours preparing the notice of entry of order and proposed judgment, and 4 hours preparing the present fee motion, and anticipates spending 3.4 hours to review Cross-Complainant's opposition and draft a reply brief. (Id. ¶¶ 33–36.) Cross-Complainant challenges these hourly totals as unreasonable; however, its characterization of Counsel's claimed hours is inaccurate. Having reviewed Counsel's submitted billing entries, the Court finds the amount of time claimed by Counsel to be reasonable. (Id. ¶ 38.) The anti-SLAPP motion raised complex and unique issues, warranting research and careful drafting even by an attorney with years of experience. The Court also credits Counsel for the time spent drafting the present fees motion, preparing the notice of order, and responding to Cross-Complainant's opposition. Thus, the Court credits Counsel with 42.7 hours.

Counsel also requests a 1.5 lodestar multiplier. This is based on Counsel's contingent fee agreement with Cross-Defendant. As Counsel properly identifies, their only way of obtaining fees in opposing the anti-SLAPP motion was through a fee award from the motion being granted. But this fact does not support the award of a multiplier. Counsel chose to bring the anti-SLAPP motion, and took on that extra work, knowing that attorney's fees were available if the motion was granted. Counsel elected to bring the motion when it was not required. A multiplier is awarded in contingent cases because an attorney's contingent fee award is highly variable, adding to the riskiness of the representation. Not only does the attorney receive no payment if the client loses; they receive a low payment if the client only wins a small amount. That same uncertainty is not present here, where counsel was

guaranteed full compensation for the time spent on the anti-SLAPP motion if they prevailed. Thus, the Court does not award a lodestar multiplier. Accordingly, Cross-Defendant's motion is granted in the partial amount of \$26,687.50.

C. Conclusion

The Court grants Cross-Defendant's motion in the partial amount of \$26,687.50.